

**UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEBRA NELSON,

Plaintiff,

vs.

CASE NO.: 3:25-cv-1447-MCR-ZCB

**AMENTUM GOVERNMENT
SERVICES PARENT HOLDINGS
LLC, CLARENCE XANDER,
JANICE HUGHES, HEATHER
GUNN, DAKOTA THOMAS,
ELIAS VELASQUEZ, and YUSEF
ABDUL-JAMI,**

Defendants.

**DEFENDANTS' MOTION TO TOLL THE
DEADLINE TO RESPOND TO PLAINTIFF'S
MOTION FOR LEAVE TO AMEND COMPLAINT (DOC. 37)**

Defendants, AMENTUM GOVERNMENT SERVICES PARENT HOLDINGS LLC, CLARENCE XANDER, JANICE HUGHES, HEATHER GUNN, DAKOTA THOMAS, ELIAS VELASQUEZ, and YUSEF ABDUL-JAMI (collectively, "Defendants"), by and through undersigned counsel, respectfully file this Motion to Toll the Deadline to Respond to Plaintiff's Motion for Leave to Amend Complaint (Doc. 37).

1. On January 2, 2026, the Court entered an Order directing Defendants to respond to Plaintiff's Motion for Leave to Amend Complaint to file her Fifth Amended Complaint within fourteen (14) days of the Order (Doc. 42). Pursuant to the Order, Defendants' response is currently due on January 16, 2026.

2. Before Defendants filed their response, Plaintiff contacted undersigned counsel and stated that she has placed a Motion for Leave to File Sixth Amended Complaint, along with a proposed Sixth Amended Complaint, in the mail for filing with the Court.

3. Plaintiff's forthcoming filing will supersede the pending Motion for Leave to Amend Complaint to file a Fifth Amended Complaint (Doc. 37), thereby mooting the necessity of Defendants to respond to it.

4. Plaintiff's forthcoming filing will also alter the issues Defendants must address. The undersigned counsel need to confer with Defendants regarding Plaintiff's Motion for Leave to File Sixth Amended Complaint and the proposed Sixth Amended Complaint.

5. As such, Defendants respectfully request that the deadline to respond to Plaintiff's Motion for Leave to Amend Complaint to file her Fifth Amended Complaint (Doc. 37) be tolled until the Court receives Plaintiff's forthcoming Motion for Leave to File Sixth Amended Complaint and the proposed Sixth Amended Complaint and directs Defendants to respond to the same.

Compliance with N.D. Fla. L.R. 7.1(F)

Pursuant to N.D. Fla. L.R. 7.1(F), counsel for Defendants confirm this Motion is 522 words.

WHEREFORE, Defendants respectfully request that this Honorable Court enter an Order: (i) granting this Motion and (ii) tolling the deadline for Defendants to respond to Plaintiff's Motion for Leave to Amend Complaint (Doc. 37).

DATED this 15th day of January, 2026.

Respectfully submitted,

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Attorneys for Defendant

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 15th day of January 2026, a true and correct copy of the foregoing was electronically filed with the Court by using the CM/ECF system and served via e-mail to the following *pro se* Plaintiff:

Debra Nelson

[REDACTED]

[REDACTED]

[REDACTED]m

Pro se Plaintiff

/s/ Lindsay D. Swiger
Lindsay D. Swiger